

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

ROGER WATERLOO DBA ECOBAMBOO, *Complainant*

v.

SHIP4WD, INC., *Respondent*.

DOCKET NO. 25-26

Served: November 17, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE, REJECTING CERTAIN COMPLAINANT’S FILINGS, AND SETTING A TEMPORARY MORATORIUM ON FILINGS

On September 9, 2025, the Commission issued a Notice of Filing of Complaint and Assignment. Since that date, Complainant Roger Waterloo DBA EcoBamboo (“EcoBamboo”) has filed a motion for default (dated September 26, 2025), alleging that Respondent Ship4WD, Inc. (“Ship4WD”) failed to file an answer by the date EcoBamboo asserts it was due, a second motion for default (dated October 7, 2025, during the government shutdown), a third motion that “seeks judicial intervention to restore procedural integrity...” (Third Motion for Relief and Procedural Clarification at 1 dated October 11, 2025), two independent exhibits, including one entitled “Exhibit CX-13 – Ship4wd’s Escalation Despite Available Resolution and Multiverse Coverage” (dated November 4, 2025, also received during the government shutdown). Immediately after the reopening of the government, EcoBamboo filed a Memorandum in Support of Default Enforcement dated November 14, 2025, well after a reply to Ship4WD’s response was due. 46 C.F.R. § 502.70(c).

Ship4WD is represented by counsel, who put in a Notice of Appearance dated September 16, 2025.¹ Subsequently, Ship4WD filed a response to the motion for default and a cross-motion to dismiss dated October 6, 2025. The response to the motion to default asserts that the Hague Convention procedures should have been followed for serving the complaint on Ship4WD, which the response implies is domiciled in Israel, and for that reason, service was not perfected on August 30, 2025, as alleged by EcoBamboo. It further argues that the Complaint was served by the Secretary of the Federal Maritime Commission on September 9, 2025, and accordingly, it was not in default. In the cross-motion to dismiss the complaint, Ship4WD asserts that the complaint fails to state a claim on which relief can be granted. It argues that the complaint does not allege “that the acts or omissions of the regulated entity occurred on a normal, customary,

¹ Mr. Waterloo, a *pro se* litigant representing himself/his company, EcoBamboo, has referred in his filings to Ship4WD’s counsel of record as the “presumed” counsel; a notice of appearance was filed and docketed, and all communications to Ship4WD regarding the claims in this proceeding are to be addressed to and through counsel of record. Bypassing counsel is not appropriate.

and continuous basis” as required to establish a violation under § 41102(c). Cross-Motion to Dismiss at 3; 46 C.F.R. § 545.4.

On October 14, 2025, Ship4WD filed a response to the second motion for default styled as Respondent’s Reply to Complainant’s Response to Respondent’s Cross-Motion to Dismiss (“Reply”) asserting both that the repetitious second motion should not be entertained under 46 C.F.R. § 502.69(d), and that it should be treated, instead, as a response to Ship4WD’s cross-motion to dismiss the complaint. In its Reply, Ship4WD addresses in more detail that its filings have been timely filed, and reiterates that the complaint is deficient and should be dismissed for failure to plead a necessary element of a § 41102(c) Shipping Act violation.

EcoBamboo appears to have misunderstood the directive for parties to proceed with their cases during the government shutdown. Unlike a proceeding where a scheduling order for discovery has been issued and the parties could proceed, both a motion for default determination and a cross-motion for dismissal were filed immediately prior to and during the shutdown in this proceeding. Until the two dispositive motions are resolved by me, no further independent exhibits or motions to compel settlement discussions should be filed.

To address this misunderstanding about what can and should be filed and when, as well as the misreading of the rules regarding responding to the complaint, I am setting a status conference for Wednesday, November 19, 2025, at 10 a.m. Both parties will receive an email invitation to participate in the video conference via Teams. In the meantime, the filing made by EcoBamboo on November 14, 2025, is rejected, and no further filings will be accepted before the status conference or unless requested by me before the conference. Ship4WD need not respond to the filing made on November 14, 2025 (Complainant’s Memorandum in Support of Default Enforcement). In addition, CX-12 – Supplemental to Exhibit EX-CL-1 filed October 13, 2025 (“CX-12”), and the November 4, 2025, filing entitled Exhibit CX-13 -Ship4wd’s Escalation Despite Available Resolution and Multiverse Coverage (“CX-13”) are rejected.

Accordingly, based on the above it is

ORDERED that the parties participate in a status conference on November 19, 2025, at 10:00 a.m. It is

FURTHER ORDERED that Complainant’s Exhibits CX-12 and CX-13 be rejected. It is

FURTHER ORDERED that Complainant’s Memorandum in Support of Default Enforcement be rejected. It is

FURTHER ORDERED that a temporary moratorium on filings is in place pending the outcome of the status conference on November 19, 2025.

The Secretary is directed to either remove or to not docket CX-12, CX-13, and Complainant's Memorandum in Support of Default Enforcement.



Linda S. Harris Crovella
Administrative Law Judge